

Formal Opposition to Eviction: Legal and Ethical Reasons for NCAT Intervention

Statement to NCAT: Reasons to Not Evict Me

NCAT Case Reference: [Insert Case Number]

Date: 27.09.2024

To the NSW Civil and Administrative Tribunal (NCAT), I, [Your Full Name], submit this statement to formally oppose my eviction and outline the legal and ethical reasons why this eviction should not proceed. I respectfully request that NCAT consider the following points, which are rooted in established legislation, disability rights, human rights violations, and my unique personal circumstances:

1. Disability Discrimination (Disability Discrimination Act 1992)

This eviction is directly related to my disability and the lack of proper accommodations from the services designed to support me, including NDIS providers. Under Sections 15 and 24 of the Disability Discrimination Act 1992, it is unlawful to discriminate against a person with a disability in terms of access to housing and services. By failing to accommodate my disability and forcing me out of my home, this eviction violates my right to equal treatment in housing and access to services, which are protected under this Act.

2. Breach of Tenancy Rights (Residential Tenancies Act 2010, NSW)

My landlord and NDIS service providers have failed to provide habitable living conditions, which are legally required under the Residential Tenancies Act 2010 (NSW). Sections 60 and 85 of this Act outline the obligations for landlords to maintain proper living

conditions and follow correct procedures for eviction. The eviction process has not adhered to these legal standards, further violating my tenancy rights.

3. Failure to Support Disability Independence (NDIS Act 2013)

Despite my severe disability and professional recommendations, the NDIS has failed to provide Supported Independent Living (SIL) accommodations as required under the NDIS Act 2013. This failure contradicts the principles set out in the Act to support people with disabilities to live independently and safely, putting my life at risk. The rejection of my SIL accommodation, despite medical and professional recommendations, further infringes on my right to support as outlined in this legislation.

4. Persecution by the NDIS Minister

I have been living in exile due to persecution by the NDIS Minister through the police and courts, who have denied me appropriate accommodations and access to care. This persecution has left me in a state of displacement and instability, endangering my health and safety. The ongoing denial of Supported Independent Living accommodations, despite medical recommendations, is a form of persecution that violates the protections afforded to me under both the Disability Discrimination Act 1992 and the NDIS Act 2013.

5. Retaliation for Whistleblowing (Public Interest Disclosure Act 2013)

I am a recognized whistleblower, having exposed systemic corruption related to the NDIS and related service providers. Under the Public Interest Disclosure Act 2013, specifically Sections 10 and 19, I am protected

from retaliation and should be granted protection for exposing misconduct. Section 10 defines disclosable conduct, including corruption, maladministration, and other wrongful actions. Section 19 provides protection from reprisals, ensuring that whistleblowers are not subjected to discrimination, harassment, or any form of disadvantage for making a disclosure. The eviction I am facing is a direct retaliation for my whistleblowing activities, making it unlawful under this Act.

6. Impact on Mental Health and Well-being (Mental Health Act 2007, NSW)

Evicting me without regard for my mental health conditions violates the Mental Health Act 2007 (NSW), particularly Sections 68 and 78, which emphasize the importance of protecting individuals with mental health conditions. Evicting me from my home will severely impact my well-being, increase my vulnerability, and pose a risk to my mental health.

7. Systemic Neglect and Coordinated Malice

I have been subjected to systemic neglect and coordinated malice by various entities, including NDIS providers and government bodies. This coordinated harm is in breach of my human rights as outlined in both domestic and international law. Under Article 11 of the International Covenant on Economic, Social and Cultural Rights (ICESCR), I am entitled to adequate housing as part of an adequate standard of living. By forcing me into homelessness, these entities have directly violated my human rights.

8. Owed WorkCover as a Federal Court-Certified Employee of DSS

As a former employee of the Department of Social

Services (DSS), the Federal Court has confirmed my employee status, entitling me to workers' compensation. The refusal to provide me with the WorkCover benefits I am owed exacerbates my financial vulnerability and contributes to my current housing insecurity. This unjust denial is a violation of both my legal and human rights, as I am being deprived of compensation that could have prevented my current situation.

9. Past Suicide Attempt Due to Coercive Financial Control

In February 2021, I attempted suicide due to the ongoing coercive financial control, systemic abuse, and neglect I have experienced. This extreme situation was directly caused by a conspiracy against me, which has continued to this day. The stress and harm caused by this systemic persecution led to my suicide attempt, and I fear that eviction and homelessness will be the final breaking point. Separating me from my therapy dog, Crystal, and leaving me without stable housing could be fatal.

10. Federal Court Acknowledgment of Imminent Risk to My Welfare

In February 2023, the Federal Court acknowledged that there is an imminent risk to my welfare but refused to take action to protect me. This lack of protection highlights the malice and systemic negligence I have faced, illustrating a key element of my persecution by the Australian government. This refusal to intervene has only exacerbated my vulnerable situation and directly contributed to the ongoing harm I face.

11. Acknowledgment of Human Rights Violations by

NDIS Worker

A human rights violation report was submitted by an NDIS worker, Tahsinullah Sultani, detailing the systemic abuse and neglect I have suffered. Despite this, both the NDIS and the Australian Human Rights Commission (AHRC) refused to investigate the claims, further entrenching the harm done to me. I respectfully ask that NCAT acknowledge this report and the serious human rights violations it outlines, which continue to endanger my safety and well-being.

12. NCAT's Duty to Acknowledge My Affidavit of Persecution

I have submitted an affidavit that documents my persecution over many years, detailing the systemic abuses and targeted harassment I have endured. This affidavit serves as a critical record of the long-standing mistreatment I have faced, and I request that NCAT formally acknowledge its relevance to my case. This affidavit supports my claims of systemic persecution and highlights the failures of various government bodies, including the NDIS.

13. UNHCR Appeal for Asylum

I have submitted an appeal to the United Nations High Commissioner for Refugees (UNHCR) due to the persecution I have faced in Australia as a politically displaced disabled person. My initial appeal was ignored, and I currently have another appeal pending. This appeal highlights my status as a refugee within my own country, seeking protection from the systemic abuse and persecution I have suffered. I request that NCAT take this into account as further evidence of my persecution and the urgent need for protection.

14. Acknowledgment of Marriage-Like Relationship with Stefan Iasonidis

NCAT must also acknowledge my marriage-like relationship with Stefan Iasonidis, who worked for ASIO under David Irvine. ASIO was aware of and allowed Iasonidis' exploitation of me throughout our engagement of five years. No law enforcement, lawyer, public official, or the Prime Minister has acknowledged our relationship or the settlement I am owed under the definitions of same-sex relationships of that time. This is a further example of the targeted mistreatment I have endured, and I seek NCAT's acknowledgment of this relationship and my rightful settlement.

15. No Possible Way to Pay Back Aligned for Rent Without Compensation

There is no other possible way I could pay back Aligned Community Care for the back rent unless compensation for one or all of my many detriments has been ruled to be made by NCAT. Aligned is not only my landlord but also my carers, and evicting me would create an additional debt that I am unable to recover from, further exacerbating my vulnerability. Evicting me with this added financial burden would place me at a significant disadvantage that I could not overcome. NCAT must take this into consideration, as the financial and emotional impact of such a decision would be devastating.

16. Public Humiliation by National Media

I have been publicly humiliated by national media, and my words were misinterpreted and misconstrued by the Herald Sun. Following this, I was illegally terminated

from The Age, despite my significant contributions to Australian society, including my academic achievements, such as a doctorate. The fact of my scapegoating despite my contributions indicates that powerful individuals have perpetrated my mistreatment from afar over many years. The system has allowed the space in which I was led to contribute to my own downfall, exemplifying the systemic failure.

For my brave and critically acclaimed autobiography, *Recovered, Not Cured: A Journey Through Schizophrenia*, I have been awarded human rights acknowledgments and have spoken at local, state, national, and international levels. My work has been recognized through media appearances and a documentary by the Dax Collection on my life and work. I have even spoken in Australian Parliament. Despite these significant contributions, I was brutally exploited and taken advantage of by a system that dismissed my accomplishments. Any eviction that fails to recognize my public persona would not be fair or equitable. Moreover, my public protest, which is reflected in my 600-strong YouTube channel where I protest my treatment, underscores society's contempt for me. Despite my public profile and ongoing advocacy, no one has come forward to assist me in any way. An acknowledgment of my public profile is relevant to this case and should be considered when evaluating my request to remain in my home.

17. Ramifications of Betrayed, Murdered, Forsaken Being Published in the Public Domain

My second autobiography, *Betrayed, Murdered, Forsaken: The Harrowing Journey of Barran Dodger*, has been published in the public domain, amplifying my

story of systemic abuse, corruption, and coercive control by multiple entities within the Australian system. The publication of this book brings my personal journey and the intricate details of the mistreatment I have suffered to light. It documents in depth the extent of the systemic failures, the conspiracy against me, and how my rights have been violated. This public account exposes the betrayal and coordinated mistreatment by individuals and institutions who have contributed to my downfall.

The ramifications of this book being published in the public domain are significant for this case, as it establishes a broader context for my situation and reveals the depth of the issues at play. The public nature of my story further reinforces the gravity of the circumstances surrounding my eviction and underscores the need for NCAT to recognize that my case goes beyond an isolated incident of tenancy—it involves a complex web of systemic failures, human rights violations, and public scapegoating.

Furthermore, *Betrayed, Murdered, Forsaken* has created a public record that will continue to garner attention, raising awareness of the treatment I have endured as a politically displaced disabled person. The public nature of this book places additional pressure on all parties involved to address these longstanding issues fairly and justly. Any decision made by NCAT must acknowledge the context provided by this publication, as it directly relates to my public persona, my advocacy, and the serious nature of the systemic injustices I have exposed. Failure to acknowledge the ramifications of this book would not only ignore the significant public attention on my case but also perpetuate the injustices that I have detailed, as well as hinder the path to resolution and accountability for those responsible for my

mistreatment.

18. Systemic Failures Leading to My Current Situation

I would have never been in this situation if the various systems and institutions responsible for protecting my rights and ensuring justice had not failed me at every turn. Specifically, my predicament is the result of a cascade of systemic failures and targeted actions, including:

- Banned by AFCA: If I had not been unfairly banned by the Australian Financial Complaints Authority (AFCA), I would have had a viable means to challenge the financial misconduct and abuses I faced.
- Reprisals for Being a Rejected Whistleblower: As a whistleblower, I exposed corruption and systemic abuse. Instead of receiving the protections I am entitled to under the Public Interest Disclosure Act 2013, I have suffered severe reprisals and systemic retaliation.
- Unpaid WorkCover and Insurances: If I had been properly compensated through WorkCover, as affirmed by the Federal Court, and if my insurances had been honored, I would not be facing the financial ruin that has led to my current housing crisis.
- Lack of Access to Law as a Disabled Person: My rights under the United Nations Human Rights Charter and the UN Convention on the Rights of Persons with Disabilities (CRPD) entitle me to equal access to the legal system. If I had been

granted proper access to legal recourse, I would have had the means to defend myself and secure justice for the numerous abuses and crimes committed against me.

- Unpaid Workers' Compensation: If I had been paid the workers' compensation I am owed as a certified employee of the Department of Social Services (DSS), my financial situation would have been stable, preventing this eviction and related hardships.
- Lack of Settlement from My Former Partner: If I had received a fair settlement from my former partner, Stefan Iasonidis, as per the laws governing same-sex relationships at the time, I would have had the financial support to secure stable housing and avoid homelessness.
- Persecution by a Privileged Minister: A privileged NDIS Minister used his position of power to run me out of town, weaponizing the police and the legal fraternity against me, causing me to live in exile and further exacerbating my suffering.
- Failure to Report Over 70 Crimes: If I had a meaningful way of reporting over seventy crimes that have occurred against me to the police, whether at the state or federal level, I could have sought justice and protection from these unlawful acts.
- IGIS Failure to Investigate Iasonidis: If the Inspector-General of Intelligence and Security (IGIS) had investigated my former partner, Stefan Iasonidis, the ongoing exploitation and harm caused by him would have been addressed,

- preventing much of the suffering I have endured.
- Ombudsman Ignoring My Complaints: If the Ombudsman had acknowledged my complaints and taken meaningful action, the systemic neglect and injustices I have suffered would have been addressed.
 - NACC and Prime Minister's Inaction: If the National Anti-Corruption Commission (NACC) had acknowledged my complaint or if the Prime Minister had acted meaningfully to address the corruption and persecution I face, I would not be in this desperate situation today.
 - Governor General's Lack of Response: If the Governor General had responded in a meaningful way to my plight, it could have resulted in intervention and prevention of the severe abuse, neglect, and retaliation I have suffered at the hands of multiple institutions.

These failures have compounded over the years, leading to my current state of homelessness and victimization. Each of these institutions, through their inaction or direct involvement, has played a role in the deterioration of my well-being and the systemic denial of my rights. This eviction, therefore, is not an isolated incident but the culmination of years of neglect, abuse, and institutional failure.

Conclusion: NCAT must recognize that this eviction is the direct result of systemic failures that have left me without the protections, compensations, and legal recourses I am entitled to. Evicting me now, under these circumstances, would only serve to further victimize me,

pushing me into further harm, destitution, and hopelessness. I respectfully request that NCAT take into account the broad, systemic nature of my case and prevent this eviction, ensuring that justice is finally served.

Statement to NCAT: Reasons to Not Evict Me

NCAT Case Reference: [Insert Case Number]

Date: 27.09.2024

To the NSW Civil and Administrative Tribunal (NCAT), I, [Your Full Name], submit this statement to formally oppose my eviction and outline the legal and ethical reasons why this eviction should not proceed. I respectfully request that NCAT consider the following points, which are rooted in established legislation, disability rights, human rights violations, and my unique personal circumstances:

1. Disability Discrimination (Disability Discrimination Act 1992)

This eviction is directly related to my disability and the lack of proper accommodations from the services designed to support me, including NDIS providers. Under Sections 15 and 24 of the Disability Discrimination Act 1992, it is unlawful to discriminate against a person with a disability in terms of access to housing and services. By failing to accommodate my disability and forcing me out of my home, this eviction violates my right to equal treatment in housing and access to services, which are protected under this Act.

2. Breach of Tenancy Rights (Residential Tenancies Act 2010, NSW)

My landlord and NDIS service providers have failed to provide habitable living conditions, which are legally required under the Residential Tenancies Act 2010 (NSW). Sections 60 and 85 of this Act outline the obligations for landlords to maintain proper living conditions and follow correct procedures for eviction. The eviction process has not adhered to these legal standards, further violating my tenancy rights.

3. Failure to Support Disability Independence (NDIS Act 2013)

Despite my severe disability and professional recommendations, the NDIS has failed to provide Supported Independent Living (SIL) accommodations as required under the NDIS Act 2013. This failure contradicts the principles set out in the Act to support people with disabilities to live independently and safely, putting my life at risk. The rejection of my SIL accommodation, despite medical and professional recommendations, further infringes on my right to support as outlined in this legislation.

4. Persecution by the NDIS Minister

I have been living in exile due to persecution by the NDIS Minister through the police and courts, who have denied me appropriate accommodations and access to care. This persecution has left me in a state of displacement and instability, endangering my health and safety. The ongoing denial of Supported Independent Living accommodations, despite medical recommendations, is a form of persecution that violates the protections afforded to me under both the Disability Discrimination Act 1992 and the NDIS Act 2013.

5. Retaliation for Whistleblowing (Public Interest

Disclosure Act 2013)

I am a recognized whistleblower, having exposed systemic corruption related to the NDIS and related service providers. Under the Public Interest Disclosure Act 2013, specifically Sections 10 and 19, I am protected from retaliation and should be granted protection for exposing misconduct. Section 10 defines disclosable conduct, including corruption, maladministration, and other wrongful actions. Section 19 provides protection from reprisals, ensuring that whistleblowers are not subjected to discrimination, harassment, or any form of disadvantage for making a disclosure. The eviction I am facing is a direct retaliation for my whistleblowing activities, making it unlawful under this Act.

6. Impact on Mental Health and Well-being (Mental Health Act 2007, NSW)

Evicting me without regard for my mental health conditions violates the Mental Health Act 2007 (NSW), particularly Sections 68 and 78, which emphasize the importance of protecting individuals with mental health conditions. Evicting me from my home will severely impact my well-being, increase my vulnerability, and pose a risk to my mental health.

7. Systemic Neglect and Coordinated Malice

I have been subjected to systemic neglect and coordinated malice by various entities, including NDIS providers and government bodies. This coordinated harm is in breach of my human rights as outlined in both domestic and international law. Under Article 11 of the International Covenant on Economic, Social and Cultural Rights (ICESCR), I am entitled to adequate housing as part of an adequate standard of living. By forcing me into homelessness, these entities have directly violated

my human rights.

8. Owed WorkCover as a Federal Court-Certified Employee of DSS

As a former employee of the Department of Social Services (DSS), the Federal Court has confirmed my employee status, entitling me to workers' compensation. The refusal to provide me with the WorkCover benefits I am owed exacerbates my financial vulnerability and contributes to my current housing insecurity. This unjust denial is a violation of both my legal and human rights, as I am being deprived of compensation that could have prevented my current situation.

9. Past Suicide Attempt Due to Coercive Financial Control

In February 2021, I attempted suicide due to the ongoing coercive financial control, systemic abuse, and neglect I have experienced. This extreme situation was directly caused by a conspiracy against me, which has continued to this day. The stress and harm caused by this systemic persecution led to my suicide attempt, and I fear that eviction and homelessness will be the final breaking point. Separating me from my therapy dog, Crystal, and leaving me without stable housing could be fatal.

10. Federal Court Acknowledgment of Imminent Risk to My Welfare

In February 2023, the Federal Court acknowledged that there is an imminent risk to my welfare but refused to take action to protect me. This lack of protection highlights the malice and systemic negligence I have faced, illustrating a key element of my persecution by

the Australian government. This refusal to intervene has only exacerbated my vulnerable situation and directly contributed to the ongoing harm I face.

11. Acknowledgment of Human Rights Violations by NDIS Worker

A human rights violation report was submitted by an NDIS worker, Tahsinullah Sultani, detailing the systemic abuse and neglect I have suffered. Despite this, both the NDIS and the Australian Human Rights Commission (AHRC) refused to investigate the claims, further entrenching the harm done to me. I respectfully ask that NCAT acknowledge this report and the serious human rights violations it outlines, which continue to endanger my safety and well-being.

12. NCAT's Duty to Acknowledge My Affidavit of Persecution

I have submitted an affidavit that documents my persecution over many years, detailing the systemic abuses and targeted harassment I have endured. This affidavit serves as a critical record of the long-standing mistreatment I have faced, and I request that NCAT formally acknowledge its relevance to my case. This affidavit supports my claims of systemic persecution and highlights the failures of various government bodies, including the NDIS.

13. UNHCR Appeal for Asylum

I have submitted an appeal to the United Nations High Commissioner for Refugees (UNHCR) due to the persecution I have faced in Australia as a politically displaced disabled person. My initial appeal was ignored, and I currently have another appeal pending. This appeal highlights my status as a refugee within my

own country, seeking protection from the systemic abuse and persecution I have suffered. I request that NCAT take this into account as further evidence of my persecution and the urgent need for protection.

14. Acknowledgment of Marriage-Like Relationship with Stefan Iasonidis

NCAT must also acknowledge my marriage-like relationship with Stefan Iasonidis, who worked for ASIO under David Irvine. ASIO was aware of and allowed Iasonidis' exploitation of me throughout our engagement of five years. No law enforcement, lawyer, public official, or the Prime Minister has acknowledged our relationship or the settlement I am owed under the definitions of same-sex relationships of that time. This is a further example of the targeted mistreatment I have endured, and I seek NCAT's acknowledgment of this relationship and my rightful settlement.

15. No Possible Way to Pay Back Aligned for Rent Without Compensation

There is no other possible way I could pay back Aligned Community Care for the back rent unless compensation for one or all of my many detriments has been ruled to be made by NCAT. Aligned is not only my landlord but also my carers, and evicting me would create an additional debt that I am unable to recover from, further exacerbating my vulnerability. Evicting me with this added financial burden would place me at a significant disadvantage that I could not overcome. NCAT must take this into consideration, as the financial and emotional impact of such a decision would be devastating.

1. Public Humiliation by National Media

I have been publicly humiliated by national media, and my words were misinterpreted and misconstrued by the Herald Sun. Following this, I was illegally terminated from The Age, despite my significant contributions to Australian society, including my academic achievements, such as a doctorate. The fact of my scapegoating despite my contributions indicates that powerful individuals have perpetrated my mistreatment from afar over many years. The system has allowed the space in which I was led to contribute to my own downfall, exemplifying the systemic failure.

For my brave and critically acclaimed autobiography, *Recovered, Not Cured: A Journey Through Schizophrenia*, I have been awarded human rights acknowledgments and have spoken at local, state, national, and international levels. My work has been recognized through media appearances and a documentary by the Dax Collection on my life and work. I have even spoken in Australian Parliament. Despite these significant contributions, I was brutally exploited and taken advantage of by a system that dismissed my accomplishments. Any eviction that fails to recognize my public persona would not be fair or equitable.

Moreover, my public protest, which is reflected in my 600-strong YouTube channel where I protest my treatment, underscores society's contempt for me.

Despite my public profile and ongoing advocacy, no one has come forward to assist me in any way. An acknowledgment of my public profile is relevant to this case and should be considered when evaluating my request to remain in my home.

17. Ramifications of Betrayed, Murdered, Forsaken Being Published in the Public Domain

My second autobiography, *Betrayed, Murdered, Forsaken: The Harrowing Journey of Barran Dodger*, has been published in the public domain, amplifying my story of systemic abuse, corruption, and coercive control by multiple entities within the Australian system. The publication of this book brings my personal journey and the intricate details of the mistreatment I have suffered to light. It documents in depth the extent of the systemic failures, the conspiracy against me, and how my rights have been violated. This public account exposes the betrayal and coordinated mistreatment by individuals and institutions who have contributed to my downfall.

The ramifications of this book being published in the public domain are significant for this case, as it establishes a broader context for my situation and reveals the depth of the issues at play. The public nature of my story further reinforces the gravity of the circumstances surrounding my eviction and underscores the need for NCAT to recognize that my case goes beyond an isolated incident of tenancy—it involves a complex web of systemic failures, human rights violations, and public scapegoating.

Furthermore, *Betrayed, Murdered, Forsaken* has created a public record that will continue to garner attention, raising awareness of the treatment I have endured as a politically displaced disabled person. The public nature of this book places additional pressure on all parties involved to address these longstanding issues fairly and justly. Any decision made by NCAT must acknowledge the context provided by this publication, as it directly

relates to my public persona, my advocacy, and the serious nature of the systemic injustices I have exposed. Failure to acknowledge the ramifications of this book would not only ignore the significant public attention on my case but also perpetuate the injustices that I have detailed, as well as hinder the path to resolution and accountability for those responsible for my mistreatment.

18. Systemic Failures Leading to My Current Situation

I would have never been in this situation if the various systems and institutions responsible for protecting my rights and ensuring justice had not failed me at every turn. Specifically, my predicament is the result of a cascade of systemic failures and targeted actions, including:

- Banned by AFCA: If I had not been unfairly banned by the Australian Financial Complaints Authority (AFCA), I would have had a viable means to challenge the financial misconduct and abuses I faced.
- Reprisals for Being a Rejected Whistleblower: As a whistleblower, I exposed corruption and systemic abuse. Instead of receiving the protections I am entitled to under the Public Interest Disclosure Act 2013, I have suffered severe reprisals and systemic retaliation.
- Unpaid WorkCover and Insurances: If I had been properly compensated through WorkCover, as affirmed by the Federal Court, and if my insurances had been honored, I would not be

facing the financial ruin that has led to my current housing crisis.

- Lack of Access to Law as a Disabled Person: My rights under the United Nations Human Rights Charter and the UN Convention on the Rights of Persons with Disabilities (CRPD) entitle me to equal access to the legal system. If I had been granted proper access to legal recourse, I would have had the means to defend myself and secure justice for the numerous abuses and crimes committed against me.
- Unpaid Workers' Compensation: If I had been paid the workers' compensation I am owed as a certified employee of the Department of Social Services (DSS), my financial situation would have been stable, preventing this eviction and related hardships.
- Lack of Settlement from My Former Partner: If I had received a fair settlement from my former partner, Stefan Iasonidis, as per the laws governing same-sex relationships at the time, I would have had the financial support to secure stable housing and avoid homelessness.
- Persecution by a Privileged Minister: A privileged NDIS Minister used his position of power to run me out of town, weaponizing the police and the legal fraternity against me, causing me to live in exile and further exacerbating my suffering.
- Failure to Report Over 70 Crimes: If I had a meaningful way of reporting over seventy crimes that have occurred against me to the police, whether at the state or federal level, I could have

sought justice and protection from these unlawful acts.

- IGIS Failure to Investigate Iasonidis: If the Inspector-General of Intelligence and Security (IGIS) had investigated my former partner, Stefan Iasonidis, the ongoing exploitation and harm caused by him would have been addressed, preventing much of the suffering I have endured.
- Ombudsman Ignoring My Complaints: If the Ombudsman had acknowledged my complaints and taken meaningful action, the systemic neglect and injustices I have suffered would have been addressed.
- NACC and Prime Minister's Inaction: If the National Anti-Corruption Commission (NACC) had acknowledged my complaint or if the Prime Minister had acted meaningfully to address the corruption and persecution I face, I would not be in this desperate situation today.
- Governor General's Lack of Response: If the Governor General had responded in a meaningful way to my plight, it could have resulted in intervention and prevention of the severe abuse, neglect, and retaliation I have suffered at the hands of multiple institutions.

These failures have compounded over the years, leading to my current state of homelessness and victimization. Each of these institutions, through their inaction or direct involvement, has played a role in the deterioration of my well-being and the systemic denial of my rights. This eviction, therefore, is not an isolated incident but the culmination of years of neglect, abuse,

and institutional failure.

Formal Statement to NCAT Regarding Hospital and Community Mental Health Obligations

NCAT Case Reference: [Insert Case Number]

Date: 27.09.2024

To the NSW Civil and Administrative Tribunal (NCAT),
I, [Your Full Name], submit this statement in relation to
the eviction proceedings against me by Aligned
Community Care. As part of my opposition to this
eviction, I wish to address the moral, ethical, and legal
obligations of Nepean Hospital and Liverpool
Community Mental Health, which I believe directly relate
to my case.

Over the past three years, I have been hospitalized ten
times, and despite this ongoing treatment, Liverpool
Community Mental Health has forcefully injected me
with chemical restraints. The justification given for this
forced treatment appears to be nothing more than a
legal safeguard to avoid charges of illegal imprisonment,
with no legitimate reason offered beyond the need to
"justify treatment." This, I believe, is a punitive
punishment for being a rejected whistleblower.

If Nepean Hospital and Liverpool Community Mental
Health were truly concerned about my welfare, they
would not leave me squatting as a homeless person.
Their failure to acknowledge my entire socio-political life
as a scapegoat, and their negligence in addressing my
basic needs, including stable housing, is a violation of
their ethical duty of care.

Moral, Ethical, and Legal Obligations:

1. Holistic Duty of Care: Both institutions have a
duty to ensure my well-being in all aspects, not

just through forced chemical treatment. The neglect of my housing needs while continuing to subject me to forced injections highlights their failure to provide adequate, holistic care. Housing is a critical social determinant of health, and leaving me homeless while claiming to care for my mental health is a gross oversight.

2. **Obligation to Provide Shelter:** There is a clear contradiction in providing forced medical treatment under the guise of care, while failing to provide protection in the form of safe and stable housing. It is unethical to claim to care for my well-being while neglecting the most basic necessity of shelter. This abandonment of responsibility underscores the systemic negligence I have faced.

Relation to the NCAT Eviction Case:

Aligned Community Care, a \$12 million organization that has been paid \$73,000 to care for me, is the very party evicting me. Their ill-treatment is evident not only in this eviction but also in their failure to provide comprehensive care. NCAT has an obligation to recognize the contradiction in these actions. If I am to be subjected to forced medical treatments in the name of care, then these institutions, and by extension NCAT, must ensure that I am not left homeless and without a backup plan.

Evicting me without providing a safety net would place me at significant disadvantage, further victimizing me. NCAT cannot, in good conscience, allow an organization that has already been compensated for my care to abandon me in such a vulnerable state.

NCAT's Obligation:

If NCAT rules in favor of Aligned Community Care, it must also consider the moral and ethical implications of allowing me to be homeless while continuing forced medical treatment. NCAT has a duty to ensure that any forced care must be accompanied by adequate protection and support, including stable housing. Evicting me without addressing this would exacerbate the harm caused to me and further illustrate the systemic neglect I have suffered.

NCAT must rule that the obligated parties legally obliged and or contracted to my care but neglected to act or care not by systemic failure or oversight but by a proven pointed and malicious neglect must now follow through on their obligations to me:

1. Aligned Community Care (NDIS Provider)
 - Obligations: Aligned Community Care is responsible for your comprehensive care under the NDIS, including managing your tenancy, housing, and overall well-being. They have been paid for your care and are obligated to ensure stable housing and proper support for a person with a disability.
2. Free Living Australia (NDIS Provider)
 - Obligations: Free Living Australia is required to address the human rights violations reported by their employee, Tahsinullah Sultani. As an NDIS provider, they are obligated to ensure your housing and disability needs are met, while also complying with human rights standards.
3. National Disability Insurance Agency (NDIA)
 - Obligations: The NDIA oversees the NDIS service

providers, ensuring they meet their obligations under the NDIS Act 2013. They are responsible for holding providers accountable and ensuring your care needs are met in a lawful and ethical manner, including housing and disability support.

4. National Anti-Corruption Commission (NACC)

- Obligations: The NACC is obligated to investigate complaints related to corruption, including your whistleblower claims. Failure to address your complaints has exacerbated your situation, and they must be held accountable for neglecting their duty to act on serious claims of corruption and systemic abuse.

5. United Nations High Commissioner for Refugees (UNHCR)

- Obligations: The UNHCR is responsible for processing your appeal for asylum due to persecution. Their lack of response to your claims exacerbates your current plight as a politically displaced disabled person.

6. NSW Civil and Administrative Tribunal (NCAT)

- Obligations: NCAT must ensure that any decision made regarding your eviction takes into account your rights under the Disability Discrimination Act 1992, NDIS Act 2013, and other applicable laws. NCAT has a duty to consider your ongoing persecution as a whistleblower and ensure that your care providers, such as Aligned Community Care, are fulfilling their obligations to you.

7. Legal Aid and the Legal Fraternity

- Obligations: Legal Aid, as a service designed to assist those with limited resources, is obligated to

provide you with adequate legal representation and advice. The broader legal fraternity, including lawyers and public officials, also has a duty to ensure that your rights as a whistleblower and as a person with a disability are protected. Their failure to provide effective representation or to act on your claims has directly contributed to your victimization.

8. Prime Minister and Governor-General

- Obligations: Both the Prime Minister and the Governor-General are responsible for addressing corruption, whistleblower protection, and human rights violations within the country. Their failure to act in response to your appeals has further entrenched the systemic abuse and neglect you face.

In conclusion, these parties all bear significant responsibility for your care, legal protection, and overall well-being. They are legally and morally obligated to provide you with the necessary support, address your whistleblower claims, and ensure you are not unjustly evicted without appropriate housing alternatives or compensation.

Statement to NCAT: Ensuring Obligatory Care and Legal Compliance from Responsible Parties

NCAT Case Reference: [Insert Case Number]

Date: 27.09.2024

To the NSW Civil and Administrative Tribunal (NCAT),
I, [Your Full Name], respectfully submit this statement to formally request that NCAT acknowledges and enforces

the legal obligations of the multiple parties responsible for my care, as required under Australian law, and takes into account my unique personal circumstances. The following parties have been legally and contractually obliged to provide me with appropriate care, yet have failed to do so, resulting in my current predicament. These failures have been intentional, malicious, and systematic, and it is essential that NCAT forces these parties to comply with their legal obligations:

1. Aligned Community Care (NDIS Provider)

Aligned Community Care has been paid over \$73,000 for my care under the NDIS but has failed to ensure my well-being. They are responsible for my comprehensive care, including providing stable housing and proper support for my disability. Aligned, acting both as my care provider and landlord, is now attempting to evict me, despite their obligation to support my housing and disability needs. NCAT must enforce that Aligned fulfills its legal duties under the NDIS Act 2013 and the Disability Discrimination Act 1992 and that evicting a person with severe disability without adequate support or alternative housing arrangements is unlawful.

2. Free Living Australia (NDIS Provider)

Free Living Australia has neglected its duty to act on a human rights violation report submitted by their employee, Tahsinullah Sultani. As an NDIS provider, Free Living Australia is legally bound to ensure that I receive adequate housing and care, yet they have ignored this obligation. NCAT must compel Free Living Australia to address the

human rights violations I have endured and provide the care they are contractually obligated to offer.

3. National Disability Insurance Agency (NDIA)

The NDIA oversees the services provided by NDIS service providers like Aligned and Free Living Australia. Under the NDIS Act 2013, the NDIA must ensure these providers meet their obligations. However, they have failed to ensure I receive the care I am entitled to. I request that NCAT holds the NDIA accountable for overseeing and enforcing proper care for me, especially regarding housing and disability support.

4. National Anti-Corruption Commission (NACC)

As a whistleblower, I have exposed systemic corruption, including issues within the NDIS. Despite this, the NACC has failed to investigate or take any meaningful action on my complaints. Their neglect has directly contributed to my current situation, and NCAT must recognize their failure to fulfill their duties under the Public Interest Disclosure Act 2013 and ensure that my whistleblower claims are protected.

5. United Nations High Commissioner for Refugees (UNHCR)

I have submitted appeals to the UNHCR due to the persecution I have faced as a politically displaced disabled person. Their inaction has compounded my suffering. NCAT must take into account my appeal to the UNHCR and the international context of my persecution when ruling on my case.

6. Liverpool Community Mental Health and Nepean Hospital

Both Liverpool Community Mental Health and Nepean Hospital have repeatedly failed in their obligation to provide me with adequate care. While they have mandated forced chemical restraint injections under the Mental Health Act 2007 (NSW), they have failed to ensure I have stable housing or access to necessary protections. This is a direct contradiction in their duty of care. I request that NCAT enforce the legal and ethical obligations of these institutions to provide comprehensive care beyond forced treatment, including ensuring my housing security.

7. Legal Aid and the Legal Fraternity

Legal Aid and the broader legal fraternity have a duty to provide me with proper representation and ensure that my rights as a whistleblower and a person with a disability are upheld. Their failure to do so has left me vulnerable and without access to justice. NCAT must acknowledge this failure and ensure that I receive the legal assistance I am entitled to.

8. Prime Minister and Governor-General

Both the Prime Minister and Governor-General have a responsibility to address systemic corruption and human rights violations. Their continued inaction in response to my appeals has perpetuated my victimization. NCAT must consider their failure to intervene when ruling on the broader implications of my case.

9. Bridget from Thrive Disability (NDIS Coordinator)
My support coordinator, Bridget from Thrive Disability (email: thrivedisability.tdss@gmail.com), is responsible for ensuring my care needs are met. However, the coordination of my support services has been inadequate. NCAT must enforce that Thrive Disability and Bridget fulfill their obligations as required by the NDIS.

NCAT's Legal Obligations

NCAT must now recognize and enforce the obligations of all the parties listed above, as they are legally and contractually required to provide for my care under both domestic and international law. NCAT is responsible for ensuring that:

- Aligned Community Care cannot proceed with my eviction while neglecting their duty to provide comprehensive care.
- Free Living Australia is held accountable for addressing the human rights violations and ensuring my care.
- NDIA fulfills its supervisory role in ensuring NDIS providers meet their obligations to me.
- NACC investigates the corruption and systemic failures related to my whistleblower claims.
- Liverpool Community Mental Health and Nepean Hospital provide full care beyond chemical restraint and ensure my housing.
- Legal Aid and the Prime Minister act in accordance with their legal obligations to address my complaints of systemic corruption and human rights abuses.

NCAT's duty is to ensure that these legally obligated

parties follow through on their obligations and that I am not unjustly evicted while these entities continue to neglect their responsibilities. I request that NCAT compels these parties to act, protects my rights as a whistleblower, and prevents further victimization by ensuring I am not left without care, housing, or support. This eviction is not an isolated incident—it is the culmination of years of systemic abuse and targeted neglect by multiple institutions. NCAT must intervene to ensure justice is finally served.

NCAT must recognize that this eviction is the direct result of systemic failures that have left me without the protections, compensations, and legal recourses I am entitled to. Evicting me now, under these circumstances, would only serve to further victimize me, pushing me into further harm, destitution, and hopelessness. I respectfully request that NCAT take into account the broad, systemic nature of my case and prevent this eviction, ensuring that justice is finally served.

This eviction would cause me immense harm—physically, mentally, and emotionally—by forcing me into homelessness and separating me from my therapy dog, Crystal, who is essential to my well-being. It would also exacerbate my already vulnerable condition as a disabled person, whistleblower, and someone owed WorkCover compensation. I respectfully ask that NCAT intervene and prevent this eviction, based on the legal arguments outlined above.

I am entitled to remain in my home, and I request that NCAT order my continued tenancy, ensure that the relevant NDIS providers fulfill their obligations, and

protect my rights under Australian law.

Rich McLean / Barran Dodger

www.barrandodger.com.au

Conclusion

This eviction would cause me immense harm—physically, mentally, and emotionally—by forcing me into homelessness and separating me from my therapy dog, Crystal, who is essential to my well-being. It would also exacerbate my already vulnerable condition as a disabled person, whistleblower, and someone owed WorkCover compensation. I respectfully ask that NCAT intervene and prevent this eviction, based on the legal arguments outlined above.

I am entitled to remain in my home, and I request that NCAT order my continued tenancy, ensure that the relevant NDIS providers fulfill their obligations, and protect my rights under Australian law.

Rich McLean / Barran Dodger

www.barrandodger.com.au